

23VECV01737 23VECV01737

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C07%2F01%2F2026

Source SHA-256: 74e247feee8087d77e34de23058394e284957fde294bc3577605cdc6c773064c

Case Number: 23VECV01737 Hearing Date: July 1, 2026 Dept: T

23VECV01737 Shahlaisaboo v City of LA

Tentative ruling: Motion for Summary Judgment: Denied. The objections to Gsell's declaration are overruled. The motion cites two grounds: 1. Trivial Defect and 2. Lack of Notice.

1. The court finds there is a triable issue of fact as to whether the uplifted edge is a trivial defect. The City's evidence is that the uplift is between .25 and .75 inches. Among other things, the court finds that reviewing the totality of the circumstances, as well as moving party's own exhibits A and B to the declaration of Spencer Christovale, the court finds that the irregular and jagged edge creates circumstances greater than just a mere height differential. Here, there is a protrusion along the edge of the concrete slab which is significant, and clearly seen in exhibits A and B. It is also seen in plaintiff's AMF#1. This means that a person's toe which potentially catches the edge of the raised slab in the area of the protrusion is not hitting a flat edge of the concrete, but an edge that is irregular and which protrudes from the edge of the slab. In other words, this is height + an irregular and jagged edge. With the conflicting testimony from experts, as well as the court's own independent review of photographs in A and B, and AMF#1, the court finds that "reasonable minds may differ" and that it is a triable issue of fact as to whether the raised slab, in conjunction with its height and the irregular and jagged edge, is a trivial defect. This prevents the court from granting summary judgment on this issue.

2. The court finds there is a triable issue of fact on the issue of notice and cause of the defect. The fact that there was no report from the public about this issue is not controlling. "The required notice may be either actual or constructive and the existence of the defect over a long period of time will support a finding of constructive notice. (Bauman v. San Francisco, 42 Cal. App. 2d 144 [108 P.2d 989] Murphy v. County of Lake (1951) 106 Cal.App.2d 61, 67. "Whether or not a dangerous condition exists and whether or not the county has had actual or constructive notice thereof are questions of fact for the jury, and their verdict will not be disturbed on appeal if it is supported by substantial evidence. (Bigelow v. City of Ontario, supra; Rowland v. City of Pomona, 82 Cal. App. 2d 622 [186 P.2d 447].) " Murphy, page 67. Defendant has failed to meet its burden of establishing that it did not have actual or constructive knowledge of this defect. The fact that it was there for many years prior to the fall is evidence of its failure to repair. The court agrees with plaintiff's argument that "Pursuant to Cal. Gov. Code § 835.2, "(a) A public entity had actual notice of a dangerous condition within the meaning of subdivision (b) of Section 835 if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character." (emphasis added) Triable issues of material fact exist whether the City had actual knowledge of the subject uplift or should have known given the documented number of times the City has been at or near the subject uplift in the years prior to the incident. Further, where "the evidence is such that a reasonable inference can be drawn that the condition was created by employees of the [defendant], then [the defendant] is charged with notice of the dangerous condition." Getchell v. Rogers Jewelry (2012) 203 Cal. App. 4th 381, 385."

As stated by plaintiff: "It is has long been held that whether a public entity can be charged with constructive notice is a question of fact for the jury. See Gallipo v. City of Long Beach (1956) 146 Cal.App.2d 520; George v. City of Los Angeles (1942) 51 Cal.App.2d 311; Perry v. City of San Diego (1947) 80 Cal.App.2d 166; Union Transp. Co. v. Sacramento County (1954) 42 Cal.2d 235. "Notice" is defined by CACI 1103 relying on Cal. Gov. Code. §835.2 as: [Name of plaintiff] must prove that [name of defendant] had notice of the dangerous condition before the incident occurred. To prove that there was notice,

[name of plaintiff] must prove: That [name of defendant] knew of the condition and knew or should have known that it was dangerous. A public entity knows of a dangerous condition if an employee knows of the condition and reasonably should have informed the entity about it. or That the condition had existed for enough time before the incident and was so obvious that the [name of defendant] reasonably should have discovered the condition and known that it was dangerous. "Where the city is charged with constructive notice on the basis of a duty to inspect, it must be made to appear that a reasonable inspection would have disclosed the defect or dangerous condition; that is, that had there been no neglect of duty, there would have been actual knowledge on the part of the city officers. *Nicholson v. City of Los Angeles* (1936) 5 Cal.2d 361. "It is well-settled that constructive notice can be shown by the long continued existence of the dangerous or defective condition, and it is a question of fact for the jury to determine whether the condition complained of has existed for a sufficient time to give the public agency constructive notice." *Erfurt v. State of California* (1983) 141 Cal. App.3d 837, 844–845." "Whether a dangerous condition has existed long enough for a reasonably prudent person to have discovered it is a question of fact for the jury, and the cases do not exact time limitations. Each accident must be viewed in light of its own unique circumstances." *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1207. For these reasons, the court finds that it is a triable issue of fact as to whether there was actual or constructive notice.